IN THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI BENCH (COURT – II)

Item No. 206
CA-(CAA)-52/ND/2023

IN THE MATTER OF:
Abhipara Trading Pvt. Ltd. and Graphic Research Consultants India Pvt. Ltd. others ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 11.08.2023

CORAM:
SHRI. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)

SHRI. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT:
For the Applicant : Adv. Vikrant Rohilla

ORDER

Ld. Counsel appearing for the Applicant submitted that the Transferor Company is a wholly owned subsidiary of Transferee Company, and there is no requirement of calling for the meeting of shareholders/creditors qua the Transferee Company. To buttress his plea, the Ld. Counsel relied upon an order dated 15.03.2018 passed by the Mumbai Bench of this Tribunal in Company Application No. 243/2017. Nevertheless, the Ld. Counsel for the Applicant seeks an opportunity to produce judgment from the High Court/NCLAT/Hon'ble Supreme Court to buttress the plea espoused by him. At his request, the hearing in the captioned petition is deferred to 21.09.2023.

Sd/-
(L. N. GUPTA)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)